Jeremiah Maloney late of
gery in the County of Villiers in the
Colony of Victoria Farmer deceased.

This is the last Will and Testament of me eremiah Maloney of Yangery in the County of Villiers in the Colony Victoria Farmer First I order and direct all my just debts funeral & testamentary expenses to be paid by my Executors hereinafter named as soon after my decease as conveniently may be I give devise and bequeath to Michael Dunne of Spring Creek in the said County Farmer and Daniel Horigan of Tower Hill Marsh in the said County Road Contractor their heirs and assigns upon the following trusts and to and for the uses intents and purposes and subject to the powers provisoes declarations legacies bequests and conditions hereinafter declared that is to say As to all that piece or parcel of land containing by admeasurement one hundred and five acres one rood and thirty four perches situate in the Parish of Yangery aforesaid being part of Portion Forty seven where I now reside To the use of my son James Maloney for and during the term of his natural life and from and after the determination of that estate In trust for such person or persons and for such estate and estates ends and purposes as the said James Maloney shall by his last will and Testament duly executed limit direct and appoint. And in default of such direction limitation or appointment In trust for the heirs of the body of him the said James Maloney in equal shares and in default of such issue In trust for my son Thomas Maloney for the term of his natural life and from and after the determination of that estate In trust to such person or persons and to and for such estate and estates ends intents and purposes as the said Thomas Maloney shall by his last will and Testament duly executed direct limit or appoint and in default of such direction limitation or appointment In trust for the heirs of the body of him the said Thomas Maloney in equal shares And in default of such issue In trust for the right heirs of me the said Jeremiah Maloney my heirs and assigns for ever. As to Portion Thirty four in the Parish of Koroit in the said County containing by admeasurement Ninety acres be the same more or less In trust to receive the rents and profits thereof for the term of Five years from the date of this my will to assist them in paying my debts and after payment of all my debts to pay the rents and profits thereof to my son James Maloney. And after the expiration of the said term of Five year T) as to said Portion Thirty four to the use of my son Thomas Maloney for the term of his natural life And from and after the determination of that estate In trust for such person or persons and to and for such estate and estates ends intents and purposes as the said Thomas Maloney shall by his last will and Testament duly executed direct limit and appoint And in default of such direction limitation or appointment In trust for the heirs of the body of the said Thomas Maloney in equal shares and in default of such issue to the use of my said son James Maloney for the term of his natural life and from and after the determination of that estate In trust for such person or persons and to and for such estate and estates as the said [illegible]

Maloney shall by his last Will and Testament duly executed
direct limit and appoint And in default of such direction limita-
tion or appointment In trust for the children of the said James
Maloney in equal shares and in default of such issue In trust
for the right heirs of me the said Jeremiah Maloney my heirs and
assigns forever I give to my son Thomas Maloney the sum of Two
hundred pounds payable to him at the end of five years from the
date of this my will and I direct my son James to pay him that
money And I charge Portion Forty seven Yangery with the payment
thereof. I give to my Cousin James Lane as long as he
lives in Victoria an Annuity or yearly sum of Twenty five pounds
And I direct my son James to pay him that money And I charge
Portion Forty seven with the payment thereof Subject to the payment
of my just debts funeral and testamentary expenses I
give and bequeath all my household furniture and all my
stock and personal property whatsoever and wheresoever to my son
James Maloney I hereby declare that should my son Thomas die
before the property hereby devised and given to him becomes vested
leaving lawful issue then the said property shall go to his lawful
issue Provided always and I do hereby declare and direct that if
my said Trustees or any future Trustee or Trustees to be appointed
under this provision of my will shall die or be desirous to be
discharged or be unwilling or incapable to act in the trusts ②
aforesaid then and in that case it shall be lawful for my Son
James Maloney and after his decease for my son Thomas Maloney
and after his decease then for the surviving trustee or trustees of
this my will of his or their own discretion by any deed or writing
under his or their hands and seals to be attested by two or more
credible witnesses to nominate and appoint any other fit person
or persons to be trustee or trustees in the place or stead of the
trustee or trustees so dying, desiring to be discharged or unwilling
or incapable to act as aforesaid And as soon after as any new
Trustee shall be nominated and appointed as aforesaid all
the trust estates and premises as shall be then vested under this
my will shall be respectively conveyed assigned and transferred
in such manner that the same may be legally and
effectually vested in the person or persons so appointed as
aforesaid either solely or jointly with the surviving or continuing
trustees as the case may require. Upon the same trusts and to and
for the uses intents and purposes as hereinbefore expressed and
declared or such of them as shall be then subsisting and capable
of taking effect and the persons so appointed as aforesaid shall have
and be entitled to exercise the same powers and authorities as if
Jm they had been appointed Trustees by this my will Provided also
and I do hereby further will and declare that none of the several
trustees hereby appointed nor any of the Trustees to be hereafter
appointed by virtue of this provision shall be charged or charge-
able with or for any sums of money other than what they shall
respectively actually receive by virtue of the trusts in them hereby
reposed notwithstanding they or any of them shall join in any
Jm receipt for the sake of Conformity And that one of them shall not be
Jm answerable or accountable for the other of them or for the acts receipts
the other of them but each only for his or their own acts receipts neglects and defaults
Jm neglects and defaults of And also that it shall be lawful for the trustees with
and out of the monies which shall come to their respective hands

by virtue of the trusts aforesaid to retain to and reimburse himself
herself or themselves respectively and allow (3) to his her or their co
trustee or co trustees all such costs charges or expenses as they or any
of them shall or may respectively sustain expend or be put unto
in or about the execution of the trusts in the v hereby reposed
I also give to my son Thomas the further sum of Three hundred pounds payable five years after the date of this my will
or in any wise relating thereto I appoint the said Michael Dunne
and Daniel Horrigan executors of this my will And I revoke
all former and other wills by me at any time heretofore made
and declare this only to be my last will and Testament In Witness
whereof I have subscribed my hand this Twenty seventh day of
June in the year of our Lord one thousand eight hundred and
sixty five

Signed and declared by the said Jeremiah
Maloney the Testator as and for his last will
and Testament in the presence of us who in
his presence at his request and in the presence
of each other have hereunto subscribed our
names as Witnesses (The words "I also give to
my son Thomas the further sum of Three
Hundred Pounds payable five years after the
date of this my Will) being first interlined
above

Jerem
Jeremiah Moloney

George Barber
Solr. Warrnambool

Henry Hutton
Clerk to
Mr. George Barber
Warrnambool.

Probate granted on Thursday the fifteenth day of February in the
year of our Lord one thousand eight hundred and sixty six
to Michael Dunne and Daniel Horrigan the executors named
in and appointed by the will of the deceased.

Date of death 12th. July 1865
Property sworn to £150.0.0
Issued 22d. February 1866

Geo. Barber Proctor

Rd W.T.D. A.J.

Michael McCaffary late of
Burrambeet in the Colony of Victoria
Farmer deceased.

This is the last will and Testament of me
Michael Mc. Caffary of Burrambeet in the Colony of Victoria
Farmer after payment of all my just debts funeral testamentary
and other expenses I give devise and bequeath unto my brother
John Mc. Caffary One hundred and seventy seven acres of land
or thereabouts being allotments three A and four A and four B sec
tion eighteen in the Parish of Baewster in the said Colony of
Victoria with all the improvements erected thereon subject
however to his paying all or any amount which may be or
become due or payable thereon to Her Majesty's Government
Also a pair of horses named respectively [illegible] and [illegible]
together with the requisite harness for the same being [illegible]
also the new Dray the new Plough and [illegible]